

26CV01827 Charmed Life Holdings LLC vs Scott Ronald Weingarten et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-09

Motion: Motion for Consolidation

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Tentative Ruling: Charmed Life Holdings LLC vs Scott Ronald Weingarten et al

Case Number

26CV01827

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/09/2026 - 10:00

Nature of Proceedings

Motion for Consolidation

Tentative Ruling

Plaintiff by James Perero

Scott and Diane Weingarten by Jay McClaugherty, Garret Nelson, Joanie Harrison

Michael Katzoff dba Blue Square Construction by Brian Kahn, Paul Whitfield

Montecito Shores Homeowners Assoc. by Theodore Hoppe, Katherine Hoppe, James H. Smith, Thomas G. Thornton.

RULING

This is an unopposed motion by Defendants for an order consolidating for all purposes Santa Barbara County Superior Court case no. 25CV02123 entitled Montecito Shores Homeowners Association v. Scott Ronald Weingarten, et al. (the HOA Action) with this case pursuant to Code of Civil Procedure section 1048, subdivision (a) (the motion to consolidate). Though the HOA Action is related to this case, Court records reflect that on July 30, 2026, a notice of settlement of the entire HOA Action was filed in that case. Court records in the HOA Action also reflect that on August 14, the Court entered an order pursuant to which the Court shall retain jurisdiction under Code of Civil Procedure section 664.6 to enforce that settlement. For these reasons, it appears that the motion to consolidate is moot. Therefore, unless the parties appear at the hearing and explain why the motion to consolidate is not mooted by the settlement of the entire HOA Action, the Court will order that motion off-calendar.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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